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CASE #	CASE NAME	HEARING NAME
CVPS2501570	BOBS LLC, A NEVADA COMPANY VS CRITICAL ELECTRIC SYSTEMS GROUP LLC, A CALIFORNIA COMPANY	MOTION TO COMPEL DEFENDANT CRITICAL ELECTRIC SYSTEMS GROUP, LLC TO PROVIDE FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET TWO, BY BOBS LLC, A NEVADA COMPANY, PRIME ASSET, LLC

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This action arises from a dispute related to a construction project for a cannabis cultivation facility. On March 4, 2025, Plaintiffs Bobs LLC (“Bobs”) and Prime Asset (together “Plaintiffs”) filed a Complaint against Defendant Critical Electric Systems Group, LLC (“CESG”), asserting causes of action for (1) breach of contract; (2) breach of implied covenant of good faith and fair dealing; (3) conversion; and (4) negligence. In the Complaint, Plaintiffs allege that in April 2018, Bobs loaned funds to the previous owners of the Property located at 69375 Ramon Road, Cathedral City, California, described as Ramon Road Production Campus LLC (the “Property”) for the construction of a cannabis cultivation facility. (Complaint at ¶¶ 6, 8.) The previous owners subsequently defaulted on the loan, and in September 2020, Bobs foreclosed on the Property and became the owner. (Complaint at ¶ 8.) Shortly thereafter, Bobs transferred title to Prime Asset. (Complaint at ¶ 8.)

At the time of the foreclosure, construction of the facility was approximately 85% complete. (Complaint at ¶ 9.) Prior to the title transfer, CESG had performed electrical work at the Property as a subcontractor to the general contractor, Orr Builders, and subsequently recorded a mechanic’s lien against the Property, then filed suit against the general contractor and the previous owners to foreclose on the lien. (Complaint at ¶ 10.) In December 2020, Plaintiffs entered into an agreement with CESG regarding the mechanic’s lien, pursuant to which Plaintiffs paid CESG for prior work and equipment, including three Generac generators (the “Generators”). (Complaint at ¶ 11.) CESG, however, failed to install the Generators and instead stored them, then without Plaintiffs’ knowledge or consent, scrapped or sold them in 2023. (Complaint at ¶¶ 12, 15–18.)

On May 1, 2025, CESG filed a Cross-Complaint against Bobs, asserting causes of action for (1) breach of contract; (2) breach of contract (Exhibits B and C); (3) quantum meruit; (4) unjust enrichment; and (5) declaratory relief.

On February 24, 2026, Bobs served special interrogatories, set two (“SPROGs”) on CESG. CESG served verified responses to the SPROGs on March 27, 2026.

Bobs now moves to compel CESG to provide further responses to SPROG nos. 26 and 27, arguing that CESG’s objections to the SPROGs lacked merit and were waived due to counsel’s failure to sign the responses, and the responses are not code-compliant because they are evasive. It also seeks sanctions in the amount of \$1,935.

In opposition, CESG argues that it provided complete and straightforward responses to the SPROGs; the responses were timely and verified, and the objections were not waived by counsel’s inadvertent failure to sign the responses; it cured the signature issue on April 15, 2026,

two months before this motion was filed; there is no good cause for further responses; and there is no basis for sanctions.

Motion to Compel Further Response(s)

A party may file a motion compelling a further response to interrogatories if it finds that the responses are inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (C.C.P. § 2030.300(a).) In a motion to compel further responses to interrogatories, the burden is on the responding party to justify any objection or failure to answer the interrogatories fully. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

Two SPROG responses are in dispute here, nos. 26 and 27.

In no. 26, Bobs asks CESG to provide all facts supporting why the Generators were not installed at the Property. (Separate Statement, no. 26.) In response, after asserting various objections, CESG states: "The decision not to install the generators were made by people and entities other than the responding party. This would be the design team including the engineer, architect, etc. The responding party in this transaction was merely the subcontractor who earlier had contracted with Orr Builders to purchase and install the three generators at the project as per the plans and specifications. CESG had nothing to do with the selection of the three generators or any decision to install or not to install the three generators at the project. CESG without waving said objection response that on information and belief. The generators could not be installed on the inside of the building because of city requirements." (*Ibid.*) By stating that it had no part in deciding whether or not to install the Generators; that decision was made by other parties, including the engineer and architect; and the Generators could not be installed inside the building because of city requirements, CESG sufficiently responded to this SPROG. While Bobs argues that additional information is necessary, since, according to the response, CESG did not make the decision, it would not have this information, which is properly sought from the parties who did make the decision not to have the Generators installed at the Property. DENIED.

In SPROG no. 27, Bobs asks for all facts supporting why CESG could not install the Generators on the Property pursuant to its original agreement with Orr Builders. (Separate Statement, no. 27.) In response, after asserting objections, CESG stated: "David Orr of Orr Builders as the general contractor told CESG to delete the three generators and the installation of the three generators from defendant CESG's scope of work. See CESG 564-565." (*Ibid.*) This is a sufficient response to the question asked in SPROG no. 27. DENIED.